

24SMCV00857 24SMCV00857

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-24

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Case Number: 24SMCV00857 Hearing Date: June 24, 2026 Dept: 207

TENTATIVE

RULING - REVISED

DEPARTMENT

207

HEARING DATE

June

10, 2026 – continued to June 24, 2026

CASE NUMBER

24SMCV00857

MOTIONS

Motions

to be Relieved as Counsel

MOVING PARTY

Mainak

D'Attaray, Esq.

OPPOSING PARTY

(none)

MOTION

Mainak D'Attaray of Law Office of

Mainak D'Attaray ("Counsel"), counsel for Defendants

Lewis Futterman and 11700 Charnock Development LLC moves to be relieved as

counsel, citing a breakdown of the attorney-client relationship. The motions are unopposed.

The Court continued the hearing to

permit counsel an opportunity to correct procedural deficiencies with the

request. Counsel subsequently filed a

proof of service.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an

action or special proceeding may be changed at any time before or after

judgment or final determination as follows: 1. Upon the consent of both client

and attorney, filed with the clerk, or entered in the minutes; 2. Upon the

order of the court, upon the application of either client or attorney, after

notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on

form MC-051; (subd. (a));

(2) it must be accompanied by

a declaration on form MC-052 stating why the motion is brought under Code of

Civil Procedure section 284(2) instead of a consent brought under section

284(1); (subd. (c));

(3) a proposed order on form

MC-053 must be lodged with the court, specifying all hearing dates scheduled in

the action or proceeding, including the date of trial, if known; (subd. (e));

and

(4) The documents must be

served on the client and on all parties that have appeared in the case. (subd.

(d).)

If

the notice is served by mail or electronic service, it must be accompanied by a

declaration indicating that the address served is the current address, or in

the case of service by mail, that it was served on the last known address and a

more current address could not be located after reasonable efforts within 30

days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a

lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in

litigation, or taking an appeal, without probable cause and for the purpose of

harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or

the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to

carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a

lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the

client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the

client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to

carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these

rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding

pending before a tribunal that the tribunal will find the existence of other

good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052,

and MC-053 for each client. However, the

Proof of Service indicates only that forms MC-051 and MC-052, but not MC-053,

were electronically served on the client and on counsel for Plaintiff. Even further, there is no proof of service in

the record demonstrating that notice of the continued hearing was served. As such, the Court finds the motions to be procedurally

defective.

The attorney declarations (MC-052) indicate that the motions were

filed instead of filing a consent because “There has been an irreparable

breakdown in the attorney client relationship” between counsel and client. (MC-052 at ¶ 2.) As such, the Court finds that the motions

comply with the Rules of Professional Conduct, rule 1.16(b)(4).)

CONCLUSION

AND ORDER

Based upon the procedural defect, the Court denies the motions without

prejudice.

Counsel shall provide notice of this ruling and file the notice with a

proof of service forthwith.

DATED: June 24, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court